

CSBA Sample - BP 3511

Board Policy

Business and Noninstructional Operations

BP 3511(a)

ENERGY AND WATER MANAGEMENT

The Governing Board recognizes the importance of minimizing the district's use of natural resources, providing a high-quality environment that promotes health and productivity, and effectively managing the district's fiscal resources. To that end, the Superintendent or designee shall develop a resource management program which includes strategies for implementing effective and sustainable resource practices, exploring renewable and clean energy technologies, reducing energy and water consumption, minimizing utility costs, reducing the amount of waste of consumable materials, encouraging recycling and green procurement practices, and promoting conservation principles.

The Superintendent or designee shall regularly inspect district facilities and operations and make recommendations for maintenance and capital expenditures which may help the district reach its conservation and management goals.

Note: The California Energy Commission administers the Bright Schools Program pursuant to Public Resources Code 25410-25421. This program offers specific services to help districts become more energy efficient by providing design and implementation assistance, conducting energy audit and feasibility studies, providing equipment bid specifications, assisting with installation, and helping to secure loans for energy related maintenance.

The Superintendent or designee shall make every effort to identify funding opportunities and cost-reducing incentive programs to help the district achieve its conservation and management goals. The Superintendent or designee shall periodically report to the Board on the district's progress in meeting its conservation and management goals.

Stormwater Management

Note: The following section is **optional**.

State and federal law authorize the State Water Resources Control Board (SWRCB) or a California regional water quality control board to designate a school district as an entity ("non-traditional MS4") which is required to obtain "coverage" under a "General Permit for Storm Water Discharges to Small Municipal Separate Storm Sewer Systems." A district may be so designated for any reason, including a water quality threat posed by its operation of storm drainage systems, at any district facility, which drain into a municipal storm drainage system or directly into a stream, creek, river, or the ocean. A district required to obtain coverage under this General Permit is prohibited from discharging certain pollutants, other than stormwater, into the storm drainage system and must develop a storm water management plan. The General Permit requires that the Board, as the governing body of the district, adopt a resolution containing the plan and authorizing the Superintendent to implement and enforce the plan. The plan must then be submitted to the local regional water quality control board for approval. In addition, the district is required to submit annual reports to the local regional water control board describing the district's progress in implementing the plan. The SWRCB anticipates that many school districts will be designated as "non-traditional MS4" over the next several years. Districts should consult with representatives of the local regional water control board and county office of education to ensure that appropriate plans are developed. Districts that have not yet been designated may revise or delete the following section as appropriate.

The Board desires to ensure that, to the maximum extent practicable, the district reduces the discharge of pollutants into the water system in order to minimize the threat to water quality from stormwater

runoff. When the district has been designated by the State Water Resources Control Board or a regional water quality control board, the Superintendent or designee shall ensure that the district complies with applicable General Permit requirements.

Note: The storm water management plan must describe how pollutants in stormwater runoff will be controlled and must include best management practices addressing the six minimum control measures specified below, as well as measurable goals and timetables.

The Superintendent or designee shall develop a storm water management plan and shall submit the plan and a resolution authorizing the implementation of the plan to the Board for approval. The district's plan shall describe best management practices, measurable goals, and timetables for implementation in the following areas:

1. Public education and outreach on stormwater impacts
2. Public participation, such as participation in adoption and implementation of the plan
3. Illicit discharge detection and elimination, such as maps and programs to detect and eliminate illicit non-storm water discharges
4. Construction site stormwater runoff control, such as reviewing construction plans, inspecting sites, and tracking construction site runoff, as well as erosion and sediment controls
5. Post-construction stormwater management, such as developing design standards for preventing runoff and verifying proper maintenance and operation of control procedures
6. Pollution prevention and good housekeeping, such as evaluating waste disposal, material storage, and equipment-cleaning procedures and spill prevention, including at bus maintenance facilities

The Superintendent or designee shall regularly report to the Board on the status of the district's implementation efforts.

Board Policy References (moved to declutter document)

(cf. 3100 - Budget)
(cf. 3300 - Expenditures and Purchases)
(cf. 3511.1 - Integrated Waste Management)
(cf. 3512 - Equipment)
(cf. 6142.5 - Environmental Education)
(cf. 7110 - Facilities Master Plan)
(cf. 7111 - Evaluating Existing Buildings)
(cf. 3514 - Environmental Safety)
(cf. 3514.1 - Hazardous Substances)
(cf. 3514.2 - Integrated Pest Management)

Legal Reference:

EDUCATION CODE

41422 School term or session length, failure to comply due to disaster

46392 Emergency conditions; ADA estimate

PUBLIC RESOURCES CODE

25410-25421 Energy conservation assistance

WATER CODE

13383.5 Storm water discharge monitoring requirements
CODE OF REGULATIONS, TITLE 23
2200 Discharge permit fees
UNITED STATES CODE, TITLE 33
1342 National pollutant discharge elimination system
CODE OF FEDERAL REGULATIONS, TITLE 40
122.1-122.64 National pollutant discharge elimination system

Management Resources:

CALIFORNIA DEPARTMENT OF EDUCATION MANAGEMENT ADVISORIES

0118.01 California's Energy Challenge

0706.90 Water Conservation Advisory, 90-09

0222.90 Average Daily Attendance Credit During Periods of Emergency 90-01

WEB SITES

CSBA: <http://www.csba.org>

Alliance to Save Energy: <http://www.ase.org>

California Department of Education, Facilities: <http://www.cde.ca.gov/lr/fa>

California Energy Commission: <http://www.energy.ca.gov>

California State Water Resources Control Board: <http://www.swrcb.ca.gov>

Department of General Resources, Green California, Sustainable Schools:
<http://www.green.ca.gov/GreenBuildings/schools>

Policy Reference UPDATE Service

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